



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

SB 1092: dangerous crimes against children; probation

NGUYEN FLOOR AMENDMENT

1. Makes this legislation only apply only prospectively, to those convicted beginning January 1, 2027.

ADDITIONAL COW
NGUYEN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1092
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-901, Arizona Revised Statutes, is amended to
3 read:

4 13-901. Probation

5 A. If a person who has been convicted of an offense is eligible for
6 probation, the court may suspend the imposition or execution of sentence
7 and, if so, shall without delay place the person on intensive probation
8 supervision pursuant to section 13-913 or supervised or unsupervised
9 probation on such terms and conditions as the law requires and the court
10 deems appropriate, including participation in any programs authorized in
11 title 12, chapter 2, article 11. If a person is not eligible for
12 probation, imposition or execution of sentence shall not be suspended or
13 delayed. If the court imposes probation, it may also impose a fine as
14 authorized by chapter 8 of this title. If probation is granted the court
15 shall impose a condition that the person waive extradition for any
16 probation revocation procedures and it shall order restitution pursuant to
17 section 13-603, subsection C where there is a victim who has suffered
18 economic loss. When granting probation to an adult the court, as a
19 condition of probation, shall assess a monthly fee of not less than \$65
20 unless, after determining the inability of the probationer to pay the fee,
21 the court assesses a lesser fee. This fee is not subject to any
22 surcharge. In justice and municipal courts the fee shall only be assessed
23 when the person is placed on supervised probation. For persons placed on
24 probation in the superior court, the fee shall be paid to the clerk of the
25 superior court and the clerk of the court shall pay all monies collected
26 from this fee to the county treasurer for deposit in the adult probation
27 services fund established by section 12-267. For persons placed on

1 supervised probation in the justice court, the fee shall be paid to the
2 justice court and the justice court shall transmit all of the monies to
3 the county treasurer for deposit in the adult probation services fund
4 established by section 12-267. For persons placed on supervised probation
5 in the municipal court, the fee shall be paid to the municipal court. The
6 municipal court shall transmit all of the monies to the city treasurer who
7 shall transmit the monies to the county treasurer for deposit in the adult
8 probation services fund established by section 12-267. Any amount
9 assessed pursuant to this subsection shall be used to supplement monies
10 used for the salaries of adult probation and surveillance officers and for
11 support of programs and services of the superior court adult probation
12 departments.

13 B. The period of probation shall be determined according to section
14 13-902, except that if a person is released pursuant to section 31-233,
15 subsection B and community supervision is waived pursuant to section
16 13-603, subsection K, the court shall extend the period of probation by
17 the amount of time the director of the state department of corrections
18 approves for the inmate's temporary release.

19 C. The court, in its discretion, may issue a warrant for the
20 rearrest of the defendant and may modify or add to the conditions or, if
21 the defendant commits an additional offense or violates a condition, may
22 revoke probation in accordance with the Arizona rules of criminal
23 procedure at any time before the expiration or termination of the period
24 of probation. If the court revokes the defendant's probation and the
25 defendant is serving more than one probationary term concurrently, the
26 court may sentence the person to terms of imprisonment to be served
27 consecutively.

28 D. At any time during the probationary term of the person released
29 on probation, any probation officer, without warrant or other process and
30 at any time until the final disposition of the case, may rearrest any
31 person and bring the person before the court.

32 E. The court, on its own initiative or on application of the
33 probationer, after notice and an opportunity to be heard for the
34 prosecuting attorney and, on request, the victim, may terminate the period
35 of probation or intensive probation and discharge the defendant at a time
36 earlier than that originally imposed if in the court's opinion the ends of
37 justice will be served and if the conduct of the defendant on probation
38 warrants it. THE COURT MAY NOT TERMINATE THE PERIOD OF PROBATION OR
39 INTENSIVE PROBATION EARLIER THAN THAT ORIGINALLY IMPOSED IF THE DEFENDANT
40 WAS CONVICTED[, ON OR AFTER JANUARY 1, 2027,] OF A DANGEROUS CRIME AGAINST
41 CHILDREN AS DEFINED IN SECTION 13-705.

42 F. When granting probation the court may require that the defendant
43 be imprisoned in the county jail at whatever time or intervals,
44 consecutive or nonconsecutive, the court shall determine, within the
45 period of probation, as long as the period actually spent in confinement
46 does not exceed one year or the maximum period of imprisonment allowed
47 under chapter 7 of this title, whichever is the shorter.

1 G. If the defendant is placed on lifetime probation and has served
2 one year in the county jail as a term of probation, the court may require
3 that the defendant be additionally imprisoned in the county jail at
4 whatever time or intervals, consecutive or nonconsecutive, the court shall
5 determine, within the period of probation if the defendant's probation is
6 revoked by the court and the defendant is subsequently reinstated on
7 probation. The period actually spent in confinement as a term of being
8 reinstated on probation shall not exceed one year or, when including the
9 initial one-year period of incarceration imposed as a term of probation,
10 the maximum period of imprisonment allowed under chapter 7 of this title,
11 whichever is shorter.

12 H. If restitution is made a condition of probation, the court shall
13 fix the amount of restitution and the manner of performance pursuant to
14 chapter 8 of this title.

15 I. When granting probation, the court shall set forth at the time
16 of sentencing and on the record the factual and legal reasons in support
17 of each sentence.

18 J. If the defendant meets the criteria set forth in section
19 13-901.01 or 13-3422, the court may place the defendant on probation
20 pursuant to either section. If a defendant is placed on probation
21 pursuant to section 13-901.01 or 13-3422, the court may impose any term of
22 probation that is authorized pursuant to this section and that is not in
23 violation of section 13-901.01.

24 K. If the court imposes a term of probation, the court may require
25 the defendant to report to a probation officer. The court or the
26 defendant's probation officer may allow the defendant to fulfill a
27 reporting requirement through remote reporting. The probation officer
28 shall take into consideration and make accommodations for the
29 probationer's work schedule, family caregiver obligations, substance abuse
30 treatment or recovery program, mental health treatment, transportation
31 availability and medical care requirements before setting the reporting
32 time and location requirements for the probationer.

33 L. If a probationer makes a written request to the supervising
34 probation department to courtesy transfer the probationer's intensive
35 probation supervision or supervised probation to another county in this
36 state with the intent to reside in that county and provides proof of
37 family caregiver obligations, employment or housing, or an offer of
38 employment or housing that will assist in the probationer's positive
39 behavioral change, the supervising probation department shall do all of
40 the following:

41 1. Confirm the details of the probationer's employment, housing or
42 family caregiving plans.

43 2. Review any victim safety concerns and ensure compliance with the
44 victims' bill of rights.

45 3. Submit the request for permission to proceed to the receiving
46 county within seven business days after receipt.

1 M. After verifying the information submitted by the sending
2 probation department pursuant to subsection L of this section, the
3 receiving probation department shall provide the sending probation
4 department with permission for the probationer to proceed to the receiving
5 county within seven business days after receipt unless the receiving
6 probation department finds the basis for the plan is not factual or the
7 transfer will endanger the victim.

8 N. If a probationer's intensive probation supervision or supervised
9 probation is courtesy transferred to another county pursuant to subsection
10 L of this section and the probationer subsequently violates the terms of
11 the probationer's probation or commits an additional offense while on
12 probation, the probation department in the county in which the probation
13 violation or additional offense occurred may not return the probationer's
14 intensive probation supervision or supervised probation back to the county
15 in which the probationer's probation was originally imposed except for
16 revocation hearings or an order of the court.

17 Sec. 2. Section 13-923, Arizona Revised Statutes, is amended to
18 read:

19 13-923. Persons convicted of sexual offenses; annual
20 probation review hearing; report; notification

21 A. If requested by the probationer, the court shall conduct a
22 probation hearing at least once a year for a probationer who is under
23 twenty-two years of age and who was convicted of an offense that occurred
24 when the person was under eighteen years of age and that requires the
25 probationer to register pursuant to section 13-3821.

26 B. This section does not preclude the court from conducting more
27 than one probation review hearing each year.

28 C. The probation department that is supervising the probationer
29 shall prepare a probation report and submit the report to the court ~~prior~~
30 ~~to~~ BEFORE the hearing.

31 D. The following individuals shall be notified of the hearing:

32 1. A prosecutor.

33 2. An attorney for the probationer.

34 3. Any victim or victim's attorney who has a right to be present
35 and heard pursuant to the victims' bill of rights, article II, section
36 2.1, ~~of the~~ constitution of ~~this state~~ ARIZONA, ~~title 13,~~ chapter 40 ~~OF~~
37 ~~THIS TITLE~~ or court rule.

38 4. The probation officer supervising the probationer.

39 E. At the hearing, after hearing from those present pursuant to
40 subsection D of this section, the court shall consider the following:

41 1. Whether to continue, modify or terminate probation. ~~THE COURT~~
42 ~~MAY NOT TERMINATE THE PERIOD OF PROBATION EARLIER THAN THAT ORIGINALLY~~
43 ~~IMPOSED IF THE PROBATIONER WAS CONVICTED[. ON OR AFTER JANUARY 1, 2027.]~~
44 ~~OF A DANGEROUS CRIME AGAINST CHILDREN AS DEFINED IN SECTION 13-705.~~

45 2. Whether to continue to require, to suspend or to terminate the
46 probationer's registration pursuant to section 13-3821.

1 3. Whether to continue, defer or terminate community notification
2 pursuant to section 13-3825.

3 F. The court may hold a prehearing involving the persons listed in
4 subsection D of this section to discuss and advise the court concerning
5 the issues listed in subsection E of this section.

6 Sec. 3. Section 13-924, Arizona Revised Statutes, is amended to
7 read:

8 13-924. Probation; earned time credit; work time credit;
9 applicability; definitions

10 A. The court may adjust the period of a probationer's supervised
11 probation on the recommendation of an adult probation officer for earned
12 time credit or work time credit.

13 B. Earned time credit equals twenty days for every thirty days that
14 a probationer does all of the following:

15 1. Exhibits positive progression toward the goals and treatment of
16 the probationer's case plan.

17 2. Is current on payments for ~~court-ordered~~ COURT-ORDERED
18 restitution and is in compliance with all other nonmonetary obligations.

19 3. Is current in completing community restitution.

20 C. Work time credit equals thirty days for every thirty days that a
21 probationer does all of the following:

22 1. Is engaged in eligible employment. A probationer must provide
23 supporting documentation to the supervising probation officer within five
24 business days after completing thirty days of eligible employment. The
25 supervising probation officer must verify the probationer's employment
26 through the supporting documentation that is provided by the probationer
27 and by any other means that the court determines is necessary to verify
28 the work, including site visits and telephonic verification. The
29 probation officer must document any request for work time credit that is
30 denied.

31 2. Exhibits positive progression toward the goals and treatment of
32 the probationer's case plan.

33 3. Is current on payments for court-ordered restitution and is in
34 compliance with all other nonmonetary obligations.

35 4. Is current in completing community restitution.

36 D. Any earned time credit and work time credit awarded pursuant to
37 this section shall be revoked if a probationer is found in violation of a
38 condition of probation.

39 E. This section does not apply to a probationer who is currently:

40 1. On lifetime probation.

41 2. On probation for any class 2 or 3 felony.

42 3. On probation exclusively for a misdemeanor offense.

43 4. Required to register pursuant to section 13-3821.

44 5. ON PROBATION FOR A DANGEROUS CRIME AGAINST CHILDREN [IF THE
45 PROBATIONER WAS CONVICTED ON OR AFTER JANUARY 1, 2027] AS DEFINED IN
46 SECTION 13-705.

1 F. This section has no effect on the ability of the court to
2 terminate the period of probation or intensive probation pursuant to
3 section 13-901, subsection E at a time earlier than originally imposed.

4 G. For the purposes of this section:

5 1. "Eligible employment" means any occupation or combination of
6 occupations for which a person can provide supporting documentation
7 verifying at least one hundred thirty wage-earning hours in any thirty-day
8 period.

9 2. "Supporting documentation" means an employment record, pay stub,
10 employment letter, contract or other reliable means of verifying
11 employment.

12 [~~ENACTED WITHOUT THE EMERGENCY~~]

13 <<Sec. 4. —Emergency

14 ~~This act is an emergency measure that is necessary to preserve the~~
15 ~~public peace, health or safety and is operative immediately as provided by~~
16 ~~law.>>~~

17 Enroll and engross to conform

18 Amend title to conform

QUANG H. NGUYEN

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